

## 26STCV02853 26STCV02853

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-08-18

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C407%2C08%2F18%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C407%2C08%2F18%2F2026)

Source SHA-256: 384f974c00c0b1d7bca29f8798aba002b9011d06c6d0be14daf2ee35466a886e

Case Number: 26STCV02853 Hearing Date: August 18, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

18, 2026 TRIAL DATE: Not set

CASE: Traci Critchlow v. Baldwin

Hills Multifamily LLC, et al.

CASE NO.: 26STCV02853

DEMURRERS

WITH MOTIONS TO STRIKE

### I. BACKGROUND

Plaintiff,

Traci Critchlow, brings this habitability action against Defendants, Baldwin Hills Multifamily LLC ("Baldwin") and Moss Management Services, Inc., dba Moss & Company Property Management dba Moss Company ("Moss") arising from her tenancy at 4046 Coco Avenue, Apt. 9, Los Angeles, CA 90028-2259 (the "Property").

On March 16, 2026, Moss filed a demurrer to the sixth cause of action for intentional infliction of emotional distress and a motion to strike punitive damages from the Complaint.

On March 20,  
2026, Baldwin filed an identical demurrer and motion to strike.

On August 5  
and 12, 2026, Plaintiff filed oppositions to the demurrers and motions to  
strike.

At the time of this writing, no replies had been filed.

The court addresses Defendants' filings together, beginning  
with the demurrers.

## II. DISCUSSION RE DEMURRER

### A.

#### Legal Standard

A demurrer for sufficiency tests whether the complaint  
states a cause of action. (Hahn v. Mirda, (2007) 147 Cal.App.4th 740,  
747.) When considering demurrers, courts read the allegations liberally and in  
context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai  
Medical Center, (2015) 236 Cal.App.4th 1401, 1406.) "Because a demurrer  
challenges defects on the face of the complaint, it can only refer to matters  
outside the pleading that are subject to judicial notice." (Arce ex rel.  
Arce v. Kaiser Found. Health Plan, Inc., (2010) 181 Cal.App.4th 471, 556.)

### B.

#### Application

Defendants argue the sixth cause of  
action for intentional infliction of emotional distress fails because the  
Complaint "is replete with vague, conclusory allegations and statements without  
identifying any individuals, their relationship to either Defendant, the actual  
conduct or statements made to Plaintiff to support her claim for outrageous  
conduct or severe emotional distress."  
(Dems., p. 4:17-19.) Defendants continue, "Plaintiff fails to allege  
sufficient facts that the conduct of [Defendants] rose to the level required for  
the intentional infliction of emotional distress cause of action. Similarly,  
the Complaint lacks the facts to establish that [Defendants] acted with the

intent to cause Plaintiff severe emotional distress or that she actually suffered severe emotional distress. As such, Defendant's demurrer should be sustained without leave to amend."

(Dems., p. 4:23-27.) The arguments lack merit.

The elements of an intentional infliction of emotional distress ("IIED") claim are: (1) that defendant's conduct was outrageous; (2) that defendant intended to cause plaintiff emotional distress, or that defendant acted with reckless disregard of the probability that plaintiff would suffer emotional distress, knowing that plaintiff was present when the conduct occurred; (3) that plaintiff suffered severe emotional distress, and (4) that defendant's conduct was a substantial factor in causing plaintiff's severe emotional distress. (CACI No. 1600; Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-51.) "It is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware." (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903-904.)

Here, the

Complaint alleges that Defendants induced Plaintiff to rent a dwelling that contains habitability issues and which Defendants intentionally failed to identify, abate, and repair. (Complaint,

¶ 96.) The habitability issues include cockroach and

vermin infestation. (Complaint, ¶ 25.) Plaintiff made at least five written

complaints to Defendants concerning the vermin infestation. (Complaint, ¶ 53.) The unremedied infestation rendered

Plaintiff's kitchen unusable and resulted in her constructive eviction. (Complaint, ¶¶ 128, 129.) The Complaint further alleges that Plaintiff

suffered emotional distress, lack of sleep, stress, general discomfort,

annoyance, and inability to quietly enjoy her home, and related physical symptoms

or bodily injury due to the cockroach infestation in Unit 9. (Complaint, ¶ 99.) The court finds these allegations are more than sufficient to state a claim for IIED against Defendants.

### C. Conclusion

The demurrers to the sixth

cause of action are OVERRULED.

### III. DISCUSSION RE MOTION TO STRIKE

## A. Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322(b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

“The grounds for a motion to strike are limited to matters appearing on the face of the challenged pleading or matters which must or may be judicially noticed. (§ 437, subd. (a); Evid. Code, §§ 451, 452.)” (*Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 20.)

## B.

### Application

Defendants move the court for an order striking references to and requests for punitive damages in the Complaint. Defendants argue there are insufficient allegations to establish that Defendants engaged in intentional or outrageous conduct to support an IIED claim. The argument lacks merit.

Punitive damages may be imposed where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) “Malice” is conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) “Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.” [Citation.]” (*Lackner v. North* (2006)

135 Cal.App.4th 1188, 1210.) "As amended to include [despicable], the [Civil Code section 3294] plainly indicates that absent an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests. The additional component of 'despicable conduct' must be found." (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) The statute's reference to despicable conduct represents a "new substantive limitation on punitive damage awards." (Id.)

Despicable conduct is "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as 'having the character of outrage frequently associated with crime.'" (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287.) Further, "[t]here must be evidence that defendant acted with knowledge of the probable dangerous consequences to plaintiff's interests and deliberately failed to avoid these consequences." (Flyer's Body Shop Profit Sharing Plan v. Ticor Title Ins. Co. (1986) 185 Cal.App.3d 1149, 1155; see also Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1228 ["Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probably dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences"].)

A motion to strike punitive damages is properly granted where a plaintiff does not state a prima facie claim for punitive damages, including allegations that defendant is guilty of oppression, fraud or malice. (Turman v. Turning Point of Cent. California, Inc. (2010) 191 Cal.App.4th 53, 63.) "Mere negligence, even gross negligence, is not sufficient to justify such an award" for punitive damages. (Kendall Yacht Corp. v. United California Bank (1975) 50 Cal.App.3d 949, 958.) The allegations supporting a request for punitive damages must be alleged with specificity; conclusory allegations without sufficient facts are not enough. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1041-1042.)

After reviewing the allegations in the Complaint, the court finds punitive damages are sufficiently pleaded. As outlined above, Plaintiff alleges that she made several complaints about the vermin infestation in her unit yet Defendants failed to identify, remedy, or abate the infestation. The vermin infestation rendered Plaintiff's kitchen unusable and resulted in her constructive eviction. These allegations, taken

together, sufficiently describe despicable conduct which was carried on with a willful and conscious disregard of Plaintiff's rights and safety.

C.

Conclusion

The motions to strike are DENIED.

#### IV. DISPOSITIONS

The demurrers are Overruled.

The motions to strike are Denied.

Defendants are ordered to serve and file their Answer to the Complaint within 5 days of this order.

Plaintiff to give notice, unless waived.

Dated: August 18, 2026

Brock T. Hammond

Judge of the Superior Court